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The first of the purposes found by the trial court to be a legitimate reason for the statute's classification between foreign and domestic corporations is that it encourages the formation of new domestic insurance companies in Alabama. The State, agreeing with the Court of Civil Appeals, contends that this Court has long held that the promotion of domestic industry, in and of itself, is a legitimate state purpose that will survive equal protection scrutiny. In so contending, it relies on a series of cases, including *Western & Southern*, that are said to have upheld discriminatory taxes. See *Bacchus Imports, Ltd.* v. *Dias*, 468 U. S. 263 (1984); *Pike* v. *Bruce Church, Inc.*, 397 U. S. 137 (1970); *Allied Stores of Ohio, Inc.* v. *Bowers*, *supra*; *Parker* v. *Brown*, 317 U. S. 341 (1943); *Carmichael* v. *Southern Coal & Coke Co.*, 301 U. S. 495 (1937); *Board of Education* v. *Illinois*, 203 U. S. 553 (1906).

The cases cited lend little or no support to the State's contention. In *Western & Southern*, the case principally relied upon, we did not hold as a general rule that promotion of domestic industry is a legitimate state purpose under equal protection analysis.[6] Rather, we held that California's pur-

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Court of Civil Appeals upheld the Circuit Court's ruling that the two purposes identified by it were legitimate, but the appellate court remanded on the issue of rational relationship as to those purposes because it found the evidence in conflict. In order to obtain an expedited ruling, appellants waived their right to an evidentiary hearing only as to the purposes "which the lower courts have determined to be legitimate." 447 So. 2d 142, 143 (Ala. 1983). Thus, for this Court to resolve whether Alabama may continue to collect the tax, it would have to decide *de novo* whether any of the other purposes was legitimate, and also whether the statute's classification bore a rational relationship to any of these purposes—all this, on a record that the Court of Civil Appeals deemed inadequate.

[6] We find the other cases on which the State relies also to be inapposite to this inquiry. *Bacchus Imports*, *Pike*, and *Parker* discussed whether